

## RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

### BACKGROUND

FIRST: As a result of a complaint filed with the Spanish Agency for Data Protection against the AYUNTAMIENTO DE SAN CRISTÓBAL DE LA LAGUNA with NIF P3802300H (hereinafter, the complained party), and noting indications of a possible breach of the regulations within the scope of the competencies of the Spanish Agency for Data Protection, actions were initiated under file number EXP202302143.

In accordance with the provisions of Article 65 of Organic Law 3/2018, of December 5, on Personal Data Protection and the Guarantee of Digital Rights (LOPDGDD hereinafter), the complaint was forwarded to the responsible party or to the Data Protection Officer designated, if applicable, requesting that they send the information and documentation indicated to this Agency.

The transfer, which was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by means of electronic notification, was not collected by the responsible party within the availability period, as evidenced by the acknowledgment of receipt in the file, understanding that the procedure was carried out in accordance with the provisions of Articles 43.2 and 41.5 of the LPACAP on March 6, 2023. Although the notification was validly carried out by electronic means, for informational purposes, a copy was sent by postal mail, resulting in the transfer being delivered on March 15, 2023, as evidenced by the acknowledgment of receipt in the file.

On April 12, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

SECOND: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the investigative powers granted to the control authorities in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the aforementioned LOPDGDD.

In the framework of the investigative actions, a request for information was sent twice to the complained party, regarding the complaint indicated in the first section, requesting that, within ten working days, they present to this Agency the information and documentation specified.

THIRD: The aforementioned request for information was notified on both occasions in accordance with the rules established in the LPACAP.

On June 22, 2023, the request was delivered electronically to the complained party, as evidenced by the acknowledgment of receipt in the file.

After the granted period elapsed without this Agency having received any response from the complained party, the request was sent again by postal mail, being collected by the responsible party on November 6, 2023, as evidenced by the acknowledgment of receipt in the file.

FOURTH: Regarding the requested information, the complained party has not sent any response to this Spanish Agency for Data Protection.

FIFTH: On February 15, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the complained party, for the alleged infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR.

The initiation agreement was received by the complained party on February 23, 2024, as evidenced by the acknowledgment of receipt in the file.

SIXTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, and after the period granted for the formulation of allegations elapsed, it has been confirmed that no allegations have been received from the complained party.

Article 64.2.f) of the LPACAP - a provision of which the complained party was informed in the initiation

agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to the complained party, and the sanction that could be imposed. Therefore, considering that the complained party has not made any allegations regarding the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In light of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts as proven in this procedure,

## PROVEN FACTS

FIRST: The requests for information indicated in the second and third backgrounds were notified in accordance with the provisions of the LPACAP.

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SECOND: The respondent has not responded to the information requests made by this Agency within the deadlines granted for this purpose in the context of the investigation proceedings of file EXP202302143.

## LEGAL GROUNDS

I

### Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

### Obligation Breached

In accordance with the facts presented, it is considered that the respondent has not provided the information requested by the Spanish Data Protection Agency.

With the aforementioned conduct of the respondent, the investigative power conferred to supervisory authorities by Article 58.1 of the GDPR, in this case, the AEPD, has been obstructed.

Therefore, the facts described in the "Proven Facts" section are deemed to constitute an infringement attributable to the respondent for violating Article 58.1 of the GDPR, which states that each supervisory authority shall have, among its investigative powers:

“a) to order the controller and the processor and, where applicable, the representative of the controller or the processor, to provide any information necessary for the performance of its tasks;”

III

### Classification and Qualification of the Infringement

The facts presented are deemed to constitute an infringement attributable to the respondent.

This infringement is classified under Article 83.5.e) of the GDPR, which considers as such: “failure to provide access in violation of Article 58, paragraph 1.”

The same article establishes that this infringement may be sanctioned with a fine of up to twenty million euros (€20,000,000) or, in the case of an enterprise, an amount equivalent to four percent (4%) of the total annual global turnover of the previous financial year, opting for the higher amount.

For the purposes of the statute of limitations for infringements, the infringement attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

“ñ) Failure to provide access to the personal data, information, premises, equipment, and processing means required by the competent data protection authority for the exercise of its investigative powers.”  
IV

#### Imposed Sanction

Article 83.7 of the GDPR provides as follows:

“Without prejudice to the corrective powers of supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State.”

Furthermore, Article 77 "Applicable regime for certain categories of controllers or processors" of the LOPDGDD provides as follows:

“1. The regime established in this article shall apply to the processing for which the following are responsible or processors:

(...)

c) The General Administration of the State, the administrations of the autonomous communities, and the entities that make up the Local Administration.

(...)

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the infringement and establishing, where appropriate, the measures to be adopted to cease the conduct or to correct the effects of the infringement that has been committed, except for that provided for in Article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

The resolution shall be notified to the controller or processor, to the body to which it hierarchically depends, where applicable, and to the affected parties who have the status of interested parties, where applicable.

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3. Without prejudice to the provisions of the previous section, the data protection authority will also propose the initiation of disciplinary proceedings when there are sufficient indications for doing so. In this case, the procedure and the sanctions to be applied will be those established in the legislation on disciplinary or sanctioning regimes that is applicable.

Furthermore, when the infringements are attributable to authorities and executives, and it is evidenced that there are technical reports or recommendations for the treatment that have not been duly addressed, the resolution imposing the sanction will include a reprimand naming the responsible position and will order publication in the corresponding Official State or regional Gazette.

4. The resolutions related to the measures and actions referred to in the previous sections must be communicated to the data protection authority.

5. The actions taken and the resolutions issued under this article will be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities.”

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE that the TOWN HALL OF SAN CRISTÓBAL DE LA LAGUNA, with NIF P3802300H, has infringed the provisions of Article 58.1 of the GDPR, an infringement classified under Article 83.5 of the GDPR.

SECOND: TO ORDER the TOWN HALL OF SAN CRISTÓBAL DE LA LAGUNA, with NIF P3802300H, that in accordance with the investigative power provided in Article 58.1.a) of the GDPR, it shall provide, within ten working days from the date this resolution becomes final and enforceable, the information

requested in the requirements made in the framework of the proceedings with file number EXP202302143 and to which reference has been made in the background of this resolution. It is warned that failure to comply with the requirements of this body may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Article 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

THIRD: TO NOTIFY this resolution to the TOWN HALL OF SAN CRISTÓBAL DE LA LAGUNA.

FOURTH: TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation evidencing the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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